

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

1. MEGAN CALLAGHAN V. BRIAN CALLAGHAN

25FL0254

On May 5, 2026, Petitioner filed a Request for Order (RFO) seeking visitation orders, support orders, property control, attorney's fees, and several additional orders as listed in her moving papers. She did not file an Income and Expense Declaration. Only the RFO was served on Respondent on May 5th. None of the other required documents were served. There is no Proof of Service evidencing service of the RFO on the Department of Child Support Services (DCSS), which is a party to the action.

The parties attended Child Custody Recommending Counseling (CCRC) on August 25, 2026. They were able to reach some agreements but could not agree on all issues therefore a report with recommendations was prepared and mailed to the parties on August 27, 2026.

Respondent filed his Responsive Declaration to Request for Order and his Income and Expense Declaration on September 9, 2026. Both documents were served on Petitioner but they were not served on DCSS.

Petitioner filed and served a response to the CCRC report on September 11th. She filed and served her Income and Expense Declaration on September 17th.

Petitioner is requesting the following orders: (1) Right of first refusal for a 12-hour period or more and to include when one parent cannot care for the children overnight; (2) Exchanges to occur at 4:00pm at the current agreed upon Sherriff's department; (3) The minors to be enrolled in and attend school in El Dorado Hills for the 2026-2027 school year and both parties to comply with district/school requirements for the transfer; (4) The family residence to be appraised and Respondent to buy-out Petitioner within 90 days of the appraisal or the family residence to be listed for sale within 90 days of the appraisal; (5) Respondent to return the certificates and documentation held by him for Petitioner's gifted jewelry items; (6) Respondent to return the Christmas ornaments being withheld from Petitioner and the parties to each receive the ornaments gifted from their immediate family; (7) Guideline spousal and child support; (8) An order declaring the marriage to be long term; (9) Respondent to pay Petitioner \$575 for outstanding therapy costs for the minor; (10) Respondent to provide the minor's therapist with a form of payment; (11) Both parties to engage in co-parenting counseling in the same facility as the minors' therapist and each to sign the necessary release for the therapists to communicate regarding the parties and the minors; (12) Respondent to pay Petitioner's attorney fees in the amount of \$15,000; and (13) Any other orders deemed appropriate by the court.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

Respondent asks the court to adopt specified portions of the CCRC report. He opposes the request to change the children's school and the right of first refusal. He further asks the court to deny the requests for an appraisal/buy-out or sale deadlines, reimbursement requests, co-parenting counseling release, property-turnover orders, support orders and attorney's fees. Additionally, he opposes Petitioner's request to find the marriage to be one of long duration.

After reviewing the filings as outlined above, the court finds the agreements and recommendations contained in the August 27, 2026 CCRC report to be in the best interests of the children and they are hereby adopted as the orders of the court.

Regarding the request for a right of first refusal, this request is denied. The court does not find a right of first refusal as proposed by Petitioner to be in the best interests of the children as it would serve to disrupt their day-to-day schedule and cause unnecessary exchanges each time Respondent needs to attend work in-person. Respondent has already arranged for care for the children in those situations and therefore, the right of first refusal request is denied.

The requests for spousal and child support are dropped from calendar. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Petitioner failed to file her Income and Expense Declaration until just five court days prior to the hearing. Moreover, DCSS is a party to the case and Petitioner failed to serve them. For the foregoing reasons, Petitioner's requests for spousal support and child support are dropped from calendar.

Likewise, the requests for reimbursement of the minor's uninsured therapy costs and the request for Respondent to provide payment information to cover future therapy costs fall within the purview of child support add-ons and thus would require notice to DCSS. These requests are therefore dropped from calendar.

The court is reserving jurisdiction over Petitioner's request to deem the marriage one of long duration until the time of trial.

Turning to the requests regarding the appraisal and the buy-out or sale of the marital residence, the court is setting a review hearing and reserving on these requests until that time. A review hearing is set for Thursday January 7th, 2027, at 8:30am in Department 5. Pending the review hearing, Respondent is ordered to pay all costs associated with the residence including the mortgage, utilities, and homeowners insurance.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

Regarding the request for the jewelry certificates and ornaments, those requests are both granted. Petitioner is to provide Respondent with an itemized list of the subject jewelry items. Once received Respondent is to provide Petitioner with any and all certificates and registered paperwork that are within his possession or control. If Respondent does not have possession of the paperwork but has knowledge of the location of the paperwork, he is to provide that information to Petitioner forthwith. Likewise, Respondent shall return the first Christmas ornaments and any other ornaments that were gifted to the children by the maternal grandparents. The court is reserving jurisdiction over the characterization of all of the aforementioned items until the time of trial.

Finally, Petitioner's request for attorney's fees is granted. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2). Family Code section 2032 works in tandem with Section 2030 to ensure that any award of costs and fees is just and reasonable. Fam. Code § 2032. "In determining what is just and reasonable under the relative circumstances, the court shall take into consideration the need for the award to enable each party, to the extent practical, to have sufficient financial resources to present the party's case adequately." *Id.* at (b).

Here, after reviewing each party's respective earnings and the amounts ordered for support, the court does find there to be a significant disparity in income such that the parties have unequal access to legal representation. The court further finds that Respondent does have the ability to pay for the attorney's fees for both parties. That said, at first glance the court was of the impression that \$15,000 did not seem reasonable. However, it appears that both parties have already incurred nearly \$30,000 in attorney's fees. As such, the court does find \$15,000 to be reasonable. Respondent is ordered to pay directly to Petitioner's attorney \$15,000 as and for attorney's fees. This amount may be paid in one lump sum or in monthly increments of \$500 commencing on October 1, 2026 and continuing on the 1st of each month thereafter until paid in full (approximately 30 months). If any payment is missed or late the entire amount shall become immediately due and payable.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

TENTATIVE RULING #1: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE AUGUST 27, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE CHILDREN AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

REGARDING THE REQUEST FOR A RIGHT OF FIRST REFUSAL, THIS REQUEST IS DENIED.

THE REQUESTS FOR SPOUSAL AND CHILD SUPPORT ARE DROPPED FROM CALENDAR.

LIKEWISE, THE REQUESTS FOR REIMBURSEMENT OF THE MINOR'S UNINSURED THERAPY COSTS AND THE REQUEST FOR RESPONDENT TO PROVIDE PAYMENT INFORMATION TO COVER FUTURE THERAPY COSTS FALL WITHIN THE PURVIEW OF CHILD SUPPORT ADD-ONS AND THUS WOULD REQUIRE NOTICE TO DCSS. THESE REQUESTS ARE THEREFORE DROPPED FROM CALENDAR.

THE COURT IS RESERVING JURISDICTION OVER PETITIONER'S REQUEST TO DEEM THE MARRIAGE ONE OF LONG DURATION UNTIL THE TIME OF TRIAL.

TURNING TO THE REQUESTS REGARDING THE APPRAISAL AND THE BUY-OUT OR SALE OF THE MARITAL RESIDENCE, THE COURT IS SETTING A REVIEW HEARING AND RESERVING ON THESE REQUESTS UNTIL THAT TIME. A REVIEW HEARING IS SET FOR THURSDAY JANUARY 7TH, 2027, AT 8:30 AM IN DEPARTMENT 5 PENDING THE REVIEW HEARING, RESPONDENT IS ORDERED TO PAY ALL COSTS ASSOCIATED WITH THE RESIDENCE INCLUDING THE MORTGAGE, UTILITIES, AND HOMEOWNERS INSURANCE.

REGARDING THE REQUEST FOR THE JEWELRY CERTIFICATES AND ORNAMENTS, THOSE REQUESTS ARE BOTH GRANTED. PETITIONER IS TO PROVIDE RESPONDENT WITH AN ITEMIZED LIST OF THE SUBJECT JEWELRY ITEMS. ONCE RECEIVED RESPONDENT IS TO PROVIDE PETITIONER WITH ANY AND ALL CERTIFICATES AND REGISTERED PAPERWORK THAT ARE WITHIN HIS POSSESSION OR CONTROL. IF RESPONDENT DOES NOT HAVE POSSESSION OF THE PAPERWORK BUT HAS KNOWLEDGE OF THE LOCATION OF THE PAPERWORK, HE IS TO PROVIDE THAT INFORMATION TO PETITIONER FORTHWITH. LIKEWISE, RESPONDENT SHALL RETURN THE FIRST CHRISTMAS ORNAMENTS AND ANY OTHER ORNAMENTS THAT WERE GIFTED TO THE CHILDREN BY THE MATERNAL GRANDPARENTS. THE COURT IS

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

RESERVING JURISDICTION OVER THE CHARACTERIZATION OF ALL OF THE AFOREMENTIONED ITEMS UNTIL THE TIME OF TRIAL.

FINALLY, PETITIONER'S REQUEST FOR ATTORNEY'S FEES IS GRANTED. RESPONDENT IS ORDERED TO PAY DIRECTLY TO PETITIONER'S ATTORNEY \$15,000 AS AND FOR ATTORNEY'S FEES. THIS AMOUNT MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$500 COMMENCING ON OCTOBER 1, 2026 AND CONTINUING ON THE 1ST OF EACH MONTH THEREAFTER UNTIL PAID IN FULL (APPROXIMATELY 30 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

2. CURTIS CHRISTENSEN V. GINA CHRISTENSEN

PFL20170845

Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) on June 4, 2026, alleging 21 counts of contempt. Respondent was personally served on July 7, 2026.

Parties appeared on August 13, 2026, at which time the court noted Minors' Counsel was not present and had not been properly served. Petitioner requested the matter be continued to allow time to serve Minors' Counsel. The court granted the request to continue and set the matter for a further hearing on September 24, 2026 at 8:30 AM in Department 5.

Petitioner filed a Declaration of Counsel on August 27, 2026, attesting to the service of Minors' Counsel. The Declaration was served on Respondent, Minors' Counsel, as well as the Department of Child Support Services on August 27, 2026.

Parties are ordered to appear for arraignment.

TENTATIVE RULING #2: PARTIES ARE ORDERED TO APPEAR FOR ARRAIGNMENT.